



Looking Down the Barrel

It took almost 22 years for Quattrocchi to be let off the hook in the Bofors case

1987: Bofors scandal breaks out with allegations of huge kickbacks.

1997: Swiss banks release 500 documents after years of legal wrangling. CBI files a formal case. Red Corner Notice issued against Quattrocchi.

October 1999: CBI files a chargesheet against Quattrocchi, naming AE Services as a front company run by him and wife Maria.

December 2002: Malaysia refuses to extradite Quattrocchi. Rejects another extradition appeal in early 2003.

June 2003: Two British bank accounts of Quattrocchi frozen on the Government's request.

February 2004: The Delhi High Court quashes the charges of bribery against Rajiv Gandhi and others. In June, UPA says case not fit to file Special Leave Petition.

May 2005: Delhi High Court dismisses charges against Hinduja brothers. UPA again says that case not fit for appeal.

January 2006: Quattrocchi's accounts in London defrozen after UPA gives the go-ahead. He withdraws Rs 21 crore stashed there.

January 2007: Quattrocchi held in Argentina, which refuses his extradition to India. Government tells CBI not to appeal against the order.

October 2008: Attorney General Milon Banerjee opines that CBI can withdraw Red Corner Notice against Quattrocchi.

immense pressure from the government and the Law Ministry, adding cryptically: "The government gets what it wants."

Sources said that Quattrocchi, now 71, had asked the Interpol to remove the RCN, saying that he had been harassed for the past 20 years for a political case. He stated in his October 2008 application all the details about the two failed extradition attempts made by India and questioned the continuation of the RCN. It was after this that the Interpol had asked CBI for its opinion, which turned to the Law Ministry for advice. According to sources, the "agency goes for legal opinion in sticky cases, not wanting to own up responsibility of taking decisions itself".

Yet, the case has been hampered by sloppy procedures right from the start. First, Malaysia refused to extradite Quattrocchi to India in December 2002. Another appeal in early 2003 was also rejected for lack of "compelling" evidence. The CBI then got Quattrocchi and his wife Maria's two accounts in London's BSI AG bank frozen in June 2003, and continued to follow the money trail.

However, the Bofors case started falling apart in February 2005 when the Delhi High Court stayed proceedings against the Europe-based Hinduja brothers and A.B. Bofors after Additional Solicitor General B. Dutta said that he needed time to ascertain whether the documents placed on record were capable of being considered for framing of charges. Dutta's submission was contrary to the CBI's affidavit filed in the court which had said that the documents were admissible as evidence under Section 166-A of the Code of Criminal Procedure. The documents were attested copies provided by the Swiss authorities. Joginder says the Swiss government does not part with original documents. Three months later, on May 31, 2005, Dutta's opinion helped the court quash all charges against the Hinduja and A.B. Bofors.